# CITY OF OPA-LOCKA

**"The Great City"**

**CLERK'S ACTION SUMMARY MINUTES**
**SPECIAL COMMISSION MEETING**
**Friday, November 8, 2019**
**5:30 P.M.**
**Sherbondy Village Auditorium**
**215 Perviz Avenue**
**Opa-locka, FL 33054**

## CALL TO ORDER:

Mayor Matthew Pigatt called the meeting to order at 5:30 p.m. on Friday, November 8, 2019 in the Sherbondy Village Auditorium, 215 Perviz Avenue, Opa-locka, Florida.

## 1. ROLL CALL:

The following members of the City Commission were present: Mayor Matthew Pigatt, Vice Mayor Chris Davis, and Commissioner Sherelean Bass. Also in attendance were: Acting City Manager Newall Daughtrey, City Attorney Burnadette Norris-Weeks, and City Clerk Joanna Flores. Commissioner Joseph L. Kelley and Commissioner Alvin Burke were not in attendance.

## 2. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

## 3. INVOCATION:

The invocation was delivered by Commissioner Sherelean Bass.

## 4. PUBLIC INPUT:
**Agenda Items Only**

## 5. FIRST READING ORDINANCES/PUBLIC HEARING:

1. **AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE ANNUAL ADOPTED GENERAL FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2018 AND ENDING SEPTEMBER 30, 2019; ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FOR THE EXPENDITURE OF FUNDS ESTABLISHED BY THE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR APPROPRIATION OF ALL BUDGETS AND EXPENDITURES; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATIONS AND AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.** *Sponsored by City Manager*

The above ordinance was read by Attorney Norris-Weeks.

Mayor Pigatt opened the floor for a public hearing.

Dorothy Johnson, 13724 NW 22nd Place, Opa-locka, FL, said there is no dollar amount on the short title of the agenda cover memo and it needs to be added. The businesses are supposed to pay an alarm fee and that is not happening; she asked the commission to look into it. She said she did not see any revenue from FEMA, the grant from the Police Department or the crossing guards. There were only two things in the document that had numbers that remained the same. She said she does not want another "99 Findings" from the Auditor General so the City needs to pay close attention to what is going on.

There being no further persons to speak on the public hearing, the public hearing was closed.

It was moved by Vice Mayor Davis, seconded by Commissioner Bass for discussion.

City Manager Pate said the purpose of the ordinance is to close out the budget year. He went on to summarize the amendment to inform the commission and the public of what is going on.

Commissioner Kelley arrived at 5:37 p.m.

Mayor Pigatt said it is alarming to hear that there is over three hundred thousand dollars ($300,000.00) in rental deficit for the Town Center building. He asked the manager what he intends to do.

City Manager Pate said some of the issues are historical, but the City never acted upon them. He will begin to meet with the tenants and if they do not intend to pay, then the City will begin the eviction process.

Mayor Pigatt asked the manager to address the anticipated income that was not received in the Parks Department.

City Manager Pate said he is working with staff to see if they can identify potential income; this was discussed as recently as today.

Mayor Pigatt asked about the Ad Valorem Taxes and the deficit in revenue.

City Manager Pate said the City projected a higher amount in taxes versus what was actually received.

Mayor Pigatt asked about the twenty thousand dollars in funds that were no used by the I.T. Department.

I.T. Director Nelson Rodriguez said those funds were used at the end of the fiscal year and are no longer available. The software was purchased for the Police department to bring the City into compliance with FDLE.

The mayor went on to ask the same question to several departments about why there was thousands of dollars in funding left in certain line items. The departments directors came before

the commission and stated that the funds were spent by the end of the fiscal, but the invoices are awaiting the approval from the state.

Commissioner Bass asked how many tenants were not paying rent in the Town Center building.

City Manager Pate said based on the report that he has the same company can have multiple suite numbers and there are currently five to seven units that are not paying rent. He asked for time to work through the issues because leases will have to be renegotiated or the tenants will be evicted.

Vice Mayor Davis asked about the FEMA reimbursement funds.

City Manager Pate said the City was performing services without the proper certification and certain criteria that was required by the state and FEMA did not provide any funds for noncompliance.

Public Works Director Airia Austin said some of the funds have been approved, but they have not been released. The other funds were not approved because the third party contractor had trucks that were not certified.

2. **AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING THE ANNUAL ADOPTED PROPRIETARY AND SPECIAL REVENUE FUND BUDGET FOR THE FISCAL YEAR COMMENCING OCTOBER 1, 2018 AND ENDING SEPTEMBER 30, 2019; ADJUSTING REVENUES AND EXPENDITURES AS REFLECTED IN EXHIBIT "A"; PROVIDING FOR THE EXPENDITURE OF FUNDS ESTABLISHED BY THE BUDGET; AUTHORIZING THE CITY MANAGER TO TAKE CERTAIN ACTIONS; PROVIDING FOR APPROPRIATION OF ALL BUDGETS AND EXPENDITURES; PROVIDING FOR FEES CONSISTENT WITH APPROPRIATIONS AND AMENDMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE.** *Sponsored by City Manager*

## 6. ADJOURNMENT:

There being no further business to come before the Commission, it was moved by Commissioner Kelley, seconded by Vice Mayor Davis to adjourn the meeting at 6:23 p.m.

MAYOR

ATTEST:

Joanna Hess

CITY CLERK